THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH, CHANDIGARH
(through web-based video conferencing platform)

Item No.5
CP (CAA) No.50/Chd/Pb/2022
(2nd Motion)

Under Section 230-232, Companies Act, 2013

In the matter of:-

Beverly Bakers Limited
PAN : AAGCB2479M
CIN: U15122PB2015PLC052902

….Petitioner Company No.1/Transferor Company No.1

AND

Beverly Food & Beverages Limited
PAN: AAFCB9371H
CIN: U15400PB2014PLC052957

….Petitioner Company No.2/Transferor Company No.2

WITH

Vista Knitberry Fashions Limited
PAN: AADCV1100E
CIN: U18101PB2008PLC050187

….Petitioner Company No.3/Transferee Company

Present through Video Conferencing:
Mr. Anand Chhibbar, Senior Advocate with Mr. Vaibhav Sahni, Advocate and Mr. Nikhil Kalra, FCS for the petitioner companies

This is a joint second motion company petition filed by the Petitioner-Companies, namely; **Beverly Bakers Limited** (Petitioner Company No.1/Transferor Company No.1); **Beverly Food & Beverages Limited** (Petitioner Company No.2/Transferor Company No.2); and **Vista Knitberry Fashions Limited** (Petitioner Company No.3/Transferee Company) under Sections 230-232 of Companies Act, 2013 (the Act) and other applicable provisions of the Act read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

2. In its petition, the petitioner companies have prayed inter alia to issue directions in relation to publication in press and notices to be issued to the

authorities concerned in relation to date of hearing of the petition and calling for objections.

3. The first motion application seeking directions for dispensing with the requirement for convening the meeting of the Equity Shareholders, Secured and Unsecured Creditors of all the Applicant Companies was filed before this Tribunal vide Company Application No.CA (CAA) No.53/Chd/pB/2021 and based on such application necessary directions were issued on 10.05.2022. In the order dated 10.05.2022, the meetings of equity shareholders of all the Applicant Company No.1 and 2; Secured Creditors and Unsecured Creditors of the Applicant Companies were dispensed with for the reasons mentioned in the aforesaid order. The meetings of Unsecured Creditors of Applicant Company No.3 were to be convened on 02.07.2022.

4. In compliance of the directions issued by this Tribunal, the Chairperson, Alternate Chairperson and Scrutinizer were also appointed and they have filed their reports which are as under:

Sr. No.	Meeting of	Chairpersons /Alternate Chairperson/Scrutinizer	Chairperson's Report		Date of meeting
			Date of filing	Date of Report	
1.	Unsecured creditors of Applicant Company No.3/Transferee Company	Mr. Rohit Khanna Advocate, Chairperson, Mr. Ankush Chowdhary, Advocate, Alternate Chairperson Ms/ Shagun Taneja, PCS	Diary No. 01402/4 Dated 05.07.2022	05.07.2022	02.07.2022

As per Chairperson's Reports dated 05.07.2022, the resolutions approving the Scheme have been unanimously approved and passed by the members present and voting in case of Unsecured Creditors of Applicant Company No.3.

5. The notice of hearing will be advertised in "Financial Express" (English) in Chandigarh Edition and "Punjabi Jagran" (Punjabi), in Punjab Edition not less than 10 days before the next date fixed for hearing.

6. In addition to the above public notice, the Petitioner Companies shall serve the notice of the petition on the following Authorities namely, a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; New Delhi; (b) concerned Registrar of Companies, (c) the Official Liquidator; and (d) Jurisdictional Income Tax Authorities through the Nodal Officer-Principal Commissioner of Income Tax, Aayakar Bhawan, Sector 17-E, Chandigarh by mentioning the PAN of the Company along with a copy of this petition by speed post immediately.

7. The petitioner-companies shall at least 7 days before the date of hearing of the petition file an affidavit of service regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given may be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

8. The next date of hearing of the petition shall be on 28.10.2022 for the consideration of the approval of the scheme as contemplated between the petitioner companies.

9. The Registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

Sd/-
(Subrata Kumar Dash)
Member (Technical)

Sd/-
(Harnam Singh Thakur)
Member (Judicial)

July 28, 2022
AV